

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUBC030470: PROFESSIONAL MEDICAL CAREERS INSTITUTE OF
CALIFORNIA, LLC vs BELINDA NAKIRIJJJA
08/27/2026 in Department 42
Motion to Enforce Stipulated Judgment Based on Conditional Settlement Pursuant to CCP
664.6**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Enforce Stipulated Judgment

Tentative Ruling: The Motion to Enforce Stipulated Judgment is DENIED.

DISCUSSION

Moving party contends that the language in the purported "settlement agreement" is an agreement for the court to retain jurisdiction under C.C.P. § 664.6. The language in question is as follows:

"Student hereby agrees to stipulate to judgment against me in Ventura County Superior Court for the State of California for the amounts due and payable under this Agreement including costs of suit, release of errors, without stay of execution and reasonable attorneys' fees or any other remedy deemed fair and just by the court."

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The Court notes that the document referenced in the motion is not titled “Settlement Agreement.” It is titled “Installment Contract and Personal Guarantee.” It does not reference the subject lawsuit by name or case number, or state that a lawsuit was pending when it was signed. It does not state the court was to retain jurisdiction to enforce its terms or mention Code of Civil Procedure § 664.6. It was not filed with the court until it was attached as an exhibit to this motion. The notice of settlement that was filed does not reference the specific agreement or that the court was to retain jurisdiction to enforce the settlement. The minute order of May 6, 2026, states the matter was ordered dismissed without prejudice, but does not state that the court retained jurisdiction to enforce a settlement.

The language in the clause is not sufficient for the court to retain jurisdiction to enforce the settlement under California Code of Civil Procedure (C.C.P.) § 664.6. Once a pending lawsuit is dismissed in its entirety, the court loses subject matter jurisdiction over the action. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429, *Sayta v. Chu* (2017) 17 Cal. App. 5th 960. For a court to assert continuing jurisdiction to enforce a settlement under C.C.P. § 664.6 after a dismissal, the parties must strictly comply with specific statutory and common law requirements before the dismissal is finalized. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429. The clause in question fails to satisfy these requirements because it does not request that the court retain jurisdiction, it was not presented to the court, and it attempts to confer subject matter jurisdiction by consent. *Sayta v. Chu* (2017) 17 Cal. App. 5th 960.

Requirements for Retention of Jurisdiction Under Cal Code Civ Proc § 664.6

Because of the summary nature of C.C.P. § 664.6, strict compliance with its requirements is a mandatory prerequisite to invoking the court's power to enforce a settlement agreement. *Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal. App. 5th 913.

To validly request that a trial court retain enforcement jurisdiction after a case is dismissed without prejudice, the request must conform to three strict requirements:

1. Timing: The request must be made during the pendency of the case, prior to the dismissal of the lawsuit in its entirety. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429. An action is no longer pending once it has been voluntarily dismissed. *Sayta v. Chu* (2017) 17 Cal. App. 5th 960
2. Identity of the Requestors: The request must be made by the litigants themselves, and not merely by their attorneys of record, spouses, or other agents. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429, *Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal. App. 5th 913.
3. Form and Presentation: The request must be made either orally before the court or in a writing signed by the parties that is presented to the court. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429.

Furthermore, the request to retain jurisdiction must be express, not implied from other language, and it must be clear and unambiguous *Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal. App. 5th 913.

Insufficiency of the Agreement's Language

The specific clause in the parties' agreement is legally insufficient to invoke the court's retained jurisdiction under Cal Code Civ Proc § 664.6 for several reasons:

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1. No Express Request to the Court: The clause merely contains an agreement between the parties to stipulate a judgment in the event of a breach. It does not contain an express, clear, and unambiguous request asking the court to retain jurisdiction under C.C.P. § 664.6. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429, C.C.P. § 664.6. The Court cannot examine the contract or actions of the parties to constructively imply a request to retain jurisdiction. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429.

2. Failure to Present the Request to the Court: Simply writing a clause into a settlement agreement is a nullity if it is not actually presented to the court before the case is dismissed. *Sayta v. Chu* (2017) 17 Cal. App. 5th 960. Parties to a lawsuit cannot confer subject matter jurisdiction on a trial court by merely including language in a settlement agreement without directly submitting a proper request to the court during the pendency of the litigation. *Sayta v. Chu* (2017) 17 Cal. App. 5th 960.

3. Subject Matter Jurisdiction Cannot Be Conferred by Consent: The clause attempts to create a mechanism to stipulate to a future judgment upon breach. However, subject matter jurisdiction cannot be conferred by consent, waiver, or estoppel. *Wackeen v. Malis* (2002) 97 Cal. App. 4th 429, *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal. App. 4th 1004. Once the voluntary dismissal is filed, the court is completely divested of subject matter jurisdiction over the action. *Sayta v. Chu* (2017) 17 Cal. App. 5th 960, *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal. App. 4th 1004. Any language in a settlement agreement purporting to vest the court with continuing jurisdiction without a proper, timely judicial request is a nullity. *Sayta v. Chu* (2017) 17 Cal. App. 5th 960, *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal. App. 4th 1004.

4. Qualifications and Procedural Consequences: The court was not presented with an express, signed request to retain jurisdiction prior to the dismissal, so the court lacks subject matter jurisdiction to entertain a Section 664.6 motion, and any subsequent enforcement order or judgment entered in that action is void. *Sayta v. Chu* (2017) 17 Cal. App. 5th 960, *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal. App. 4th 1004.

Summary

The written clause in the agreement is legally insufficient to preserve the court's jurisdiction under CCP § 664.6 because it does not contain an express request for the court to retain jurisdiction, it was not presented to the court before the dismissal was entered, and it impermissibly attempts to confer subject matter jurisdiction by consent. Because the court was never properly asked to retain jurisdiction during the pendency of the action, the dismissal of the lawsuit (regardless of whether it was with or without prejudice) divested the court of subject matter jurisdiction, and any subsequent enforcement of the agreement must be pursued through a separate civil action. For these reasons, the motion is denied.